



STANDING ORDER NO. L&O/25/2024

ACTION AGAINST SEXUAL OFFENCE IN PUBLIC PLACE

I. INTRODUCTORY

Whoever commits or participates in or abets harassment of woman in or within the precincts of any educational institution, temple or other place of worship, bus stop, road, railway station, cinema theatre, park, beach, place of festival, public service vehicle or vessel or any other place shall be covered under the scope of this Standing Order.'

Various legal provisions can be invoked to deal with such offenses. Sections 296, 74, 75, 76, 77, 78 and 79 of Bhartiya Nyaya Sanhita 2023, Section 12 of POCSO Act and Section 91, 92 & 93 of the Delhi Police Act, 1978 are the relevant ones which should be freely made use of so that this crime is kept under check.

Women/Girls in public places are vulnerable to Sexual Offences especially in places like University/Colleges especially during opening sessions. Festivals, submission of places of forms, cash counters, cinema houses, places of public entertainment, busy market centers by miscreants including DTC, stands and DTC buses etc on all the days including festival occasion. It shall be the duty of local police especially and all other officers/men generally to check this crime firmly.

II. PREVENTIVE STEPS

The following steps are suggested for the purpose:

- i. In order to tackle the problem of sexual offences in public places, vigilance around the educational institutions particularly girls institutions and DTC bus routes/stops, malls, sale counters, weekly markets to be intensified.
- ii. Special squads in civvies shall be set up. Beat patrolling shall be so organized as to cover as many girls' Schools/Colleges as possible.
- iii. Beat staff including women staff shall be instructed to station themselves near gym, parks, religious places, malls and their

schools/colleges/institutions, particularly when movement of girls is there.

- iv. Motorcycle patrolling & MPVs in the area shall be instructed to cover all the girls Schools/Colleges/institutions as well as high footfall areas of malls, markets and marriage homes so as to prevent incidents of sexual offences in public places.
- v. Crime Against Women Cell and Districts shall launch joint drives against sexual offenders at suitable intervals. In the drill, DTC buses and Chartered buses shall be stopped at fixed points and similarly random checking should also be carried out at Metro Stations, police men shall ask ladies if they have any problem and complaint against anyone traveling with them. The policemen shall also ensure that the ladies seats are not occupied by the men travelling in the buses. The women police officials should also be roped in the team.
- vi. The DTC/Chartered Bus staff shall be instructed to stop buses near any of the MPV Staff, police stations and police posts in case there is a complaint of Sexual offences against women or rowdyism in the buses.
- vii. The measures adopted shall be given wide publicity and awareness programme may be organized in the schools/colleges for the awareness of women how to take help of police officials in the field of respective crimes occurring with them. The lady commuters shall be advised to take help of the MPV staff at times of need.
- viii. Efforts shall be made to organize joint drives-by the volunteers from students unions, both girls and boys, DTC staff and Police. The menace of sexual offences in public place can only be successfully combated if they combine their efforts wholeheartedly.
- ix. Sensitive bus routes shall be identified and random check on these routes may be carried out to keep a check on the crime.
- x. Liaison shall be established with University College authorities, institutions, especially the Women's college authorities, organizers of sports, dramas, similar other functions and operations lunched with the help of these volunteers from the educational institutions especially the women's colleges.
- xi. Police pickets should include women police staff. Moreover, sufficient Police presence in moving mode needs to be remained and halting points may be fixed near major women colleges, co-educational institutions, malls, major markets, bus stops and other places where hooligans operate.
- xii. Police Stations shall ensure the presence of its vehicles at sensitive spots. MPV's staff shall be properly briefed about the action to be taken by them in cases of hooliganism which may

come to their notice. Female staff may be deployed subject to availability.

- xiii. Suitable arrangements shall be made by the Districts at liquor shops as well as in communally sensitive areas.
- xiv. District DCP and DCP Crime against Women Cell shall monitor the arrangement against Sexual offenders in the city and shall also take steps to involve women special police officers and voluntary Women's organizations to prevent un-savoury incidents during this period.
- xv. Goondas and bad characters shall be rounded up in advance of Festivals.
- xvi. Black-Sheep among the DTC staff, drivers/conductors of private buses shall be identified and matter be brought to the notice of DTC authorities to initiate action against them. Beside this, stringent legal action shall be taken against offenders.
- xvii. Special attention shall be paid to dark stretches or areas having poor mobile connectivity. DCsP/Districts shall liaise with concerned authorities and ensure adequate preventive measures including street lights, CCTV Cameras, police booths etc.
- xviii. Special panic buttons are provided in DTC Buses with respect to a system has been developed in which when a person in distress especially a woman presses the panic button in the DTC Bus then the DTC control room, upon receiving the alert, shall forward the relevant call to ERSS-112 for police assistance and subsequent action shall be taken.

III. MAINTENANCE OF DATABASE OF SEXUAL OFFENDERS

All District/Units should collect and analyse data of Sexual offenders under different categories and the same should be shared with DCP/Crime so that consolidated centralized data base can be maintained at state level. Following information should be shared with DCP Crime at the time of arrest of alleged:

Sl. No.	NAME ADDRESS AND PARANTAGE OF THE ALLEGED	FIR NO/DATE	PHOTOGRAPH	REASON OF ARREST	SEARCH SLIP

Search Slip and photographs of offenders arrested should also be maintained in the database so that repeat offenders can be identified and at the filing of Charge sheet relevant sections of

Enhanced Punishment can be added (Sec 13 BNS 2023) as well as the record of arrested person must be updated on NAFIS (National Automated Fingerprint Identification System).

Further, IOs shall be sensitized to upload the relevant details of such offenders in NDSO (National Database of Sexual Offenders) maintained by National Crime Records Bureau for regular monitoring and tracking by the state Police.

IV. COMMUNITY POLICING AS A MEASURE TO COUNTER SEXUAL OFFENCES

1. Self Defence Training: women can become target of harassment violence and exploitation in public places, offices and sometimes even in their homes. To empower women regarding their own safety and security, Nari Sashakti Programs to be organized in maximum schools and colleges.
2. More and more college/school going girls be encouraged to report sexual offences/harassment through operation "NIRBHEEK". The aim should be to reach out to the young victims of sexual exploitation.
3. Programs under 'NAZUK' scheme should be organized on regular intervals at different places to encourage women/girls to report about their sexual harassment etc.
4. Based on "Detain & Discipline", operation SHISHTACHAR addresses the concerns of girls and women facing harassment in crowded places, especially markets, public transports and metros by nabbing offenders on the spot. It has been designed to sensitize the youth to refrain from sexual harassment and develop respect towards women.
5. More and more awareness should be created among women of all age groups about "HIMMAT PLUS" app and about women helpline number i.e. 1091.
6. Various platforms on electronics media may be explored for the wide publicity of drives/apps/programs which are being introduced time to time for its effectiveness.

V. ACTION BY POLICE STAFF

Whenever a Police Officer, whether on duty or otherwise, happens to notice any one uttering indecent words, songs etc., in or near any public place directed towards any woman, or indecently exposing his person in the presence of a woman in any public place, the police officer shall arrest that person at once u/s 296 BNS 2023 and POCSO Act, if applicable. If the police officer happens to be in civvies, he shall disclose his identity to the accused and others. This act also comes within mischief contemplated by Sections 91, 92 & 93

of the Delhi Police Act. Both the offences are cognizable. In such a case, the police officer has to collect evidence that the act of the accused caused annoyance to any member or members of the public, who happened to be there. The prosecution case does not suffer for lack of proof of annoyance merely, because the woman who was the aimed victim: of the obscene act is not being produced as a witness. Any member of the public who happens to be there and to whom the annoyance was caused due to the indecent act of the accused may be cited as witnesses in the case. If section 296 BNS 2023 and POCSO Act, if applicable is applied then the case has to be registered and properly investigated, even if the occurrence is reported at the police station or outside though occurrence may not have been witnessed by the police officer. The Statement of woman against whom an offence under section 64, section 65, section 66, section 67, section 68, section 69, section 70, section 71, section 74, section 75, section 76, section 77, section 78, section 79 or section 124 of BNS 2023 is alleged to have been committed or attempted shall be recorded by a woman police officer or any woman officer (Section 180 BNSS). On the other hand, if arrest is made under appropriate sections of Delhi Police Act, only a complaint constituting the offence together with a list of witnesses is to be forwarded to the court for trial through the SHO/SDPO concerned. It may also happen that while a police officer is present outside the Police Station on duty or otherwise, somebody comes forward and charges a person present there with having committed an obscene act in any public place aimed at a woman. The police officer in such circumstances can also arrest that person u/s 39 BNSS 2023. if that person on demand. by the Police officer refuses to give his name and residence or gives a name or residence, which such the police officer has reason to believe to be false, so that his name or residence may be ascertained. The police officer shall also forward a complaint stating facts of the case to the Magistrate under appropriate Sections of D.P. Act. If the circumstances warrant a heavier punishment, a case u/s 296 BNS 2023 and POCSO Act, if applicable be registered and investigated.

VI. PUBLIC PLACE SIGNIFICANCE OF

The word 'public place' includes any place to which the public has an access, whether they have a right to go there or not, like public urinals, public houses and public conveyances such as buses, taxies, Tonga, Railway platforms, goods yard of a Railway station, unfenced compound, a place forming part of compound of place of workshop, ghats, theatre halls, malls, amusement parks and all other open spaces resorted to by the public for the purpose of recreation and amusement etc. The act, if committed even from house top visible to persons present in the road or in some other houses is also punishable under these sections of law.

VII. MISCHIEF

If the indecent of utterance of words or songs or making of any sound or gesture and exhibition of any object is done by any person at any place whether public or otherwise with the intention of insulting the modesty of a women, when the act of that person comes within the mischief contemplated by section 79 BNS 2023. Even in the cases covered under this section, it is not necessary to cite a woman victim aimed at, as a witness. It is also not necessary that the women aimed at, should have either heard the indecent words or seen the indecent exposure herself. Arrest of the culprit can, however, be made if the act is committed in the presence of police officer or the culprit has been charged, as stated in section 39 BNSS 2023. This section also covers the cases where a person intending to insult the modesty of the woman, intrudes upon the privacy of a women; such as following a woman at various places and laughing and grinning and starting at her while passing and re-passing and shouting her name and so on, or sending a letter to a woman containing indecent overtures.

VIII. CRIMINAL FORCE IN COGNIZANCE TO BE TAKEN

If, however, an assault is made on or criminal force is used to a woman with intent to outrage or knowing it to be likely that he will thereby outrage her modesty, the act of the culprit comes within the purview of section 74, 75, 76, 77 & 78 BNS 2023 and POCSO Act which are cognizable offences. A regular case should there be registered and investigated. The Statement of woman against whom an offence under section 64, section 65, section 66, section 67, section 68, section 69, section 70, section 71, section 74, section 75, section 76, section 77, section 78, section 79 or section 124 of BNS 2023 is alleged to have been committed or attempted shall be recorded by a woman police officer or any woman officer (Section 180 BNSS).

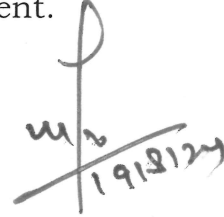
The Police officer while submitting a complaint under Delhi Police Act, before the court, may also consider the desirability of applying section 79 BNS 2023, if it is so warranted by the facts. The provisions of section 39 BNSS 2023. may also be availed of in all suitable cases keeping in view the aforesaid instances which are merely illustrative and-not exhaustive.

SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No. L&O/25/2022 issued vide No.11801-11950/Record Branch/PHQ dated 21.03.2022.

DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.



(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI

No. 8501-8650/Record Branch/PHQ dated Delhi, the 19/8/24.

Copy forwarded to: -

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/ PHQ with the direction to upload the Standing Order in Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs. /PHQ.
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